

25STCV19093 25STCV19093

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Case Number: 25STCV19093 Hearing Date: September 4, 2026 Dept: 316

BACKGROUND

This case is a lemon law action.

On June 30, 2025,
Plaintiff Bobbie Pedroza filed a complaint against Defendant General Motors, LLC.
The complaint alleges two causes of action stemming from Plaintiff's purchase of an allegedly defective vehicle.

On May 18, 2026, the
parties filed a Notice of Settlement of Entire Case.

On July 10, 2026,
Plaintiff filed a Motion for Attorney's Fees.

On August 24, 2026, GM
filed an opposition.

On August 27, 2026,
Plaintiff filed a reply.

TENTATIVE RULING

Plaintiff's Motion for
Attorney's Fees is GRANTED in the amount of \$16,076.58 in fees
and costs.

LEGAL STANDARD

Under the Song Beverly

Consumer Warranty Act, if a buyer prevails in the action, the buyer is allowed to recover costs and expenses, including attorney's fees based on actual time expended. (Civ. Code § 1794, subd. (d).)

The determination

of a reasonable amount of attorney fees is within the sound discretion of trial courts. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) When assessing the amount of any attorney's fee award, courts typically determine what is reasonable through the application of the "lodestar" method. Under the lodestar method, a base amount is calculated from a compilation of time reasonably spent and the reasonable hourly compensation of each attorney. (See Serrano v. Priest (1977) 20 Cal.3d 25, 48); see also Meister v. Regents of University of California (1998) 67 Cal.App.4th 437, 448-449 [holding that the lodestar method applies to statutory attorney fees award unless the underlying statute provides for another method of calculation].)

A plaintiff's verified

billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) Counsel has the burden of providing the reasonable number of hours devoted to the litigation, through declarations, or redacted or unredacted timesheets or billing records. (See Concepcion v. Amscan Holdings, Inc. (2014) 223 Cal.App.4th 1309, 1325.) "[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.)

DISCUSSION

The Court will award \$16,076.58 in total fees and costs.

I.

Reasonable

Rates

After considering each

attorney's history, experience, and expertise, the Court finds the listed hourly rates reasonable.

There were three attorneys

who worked on Plaintiff's case – Aliaksandra Valitskaya, Mark Romano, and Timothy Whelan. Valitskaya has an hourly rate of \$550, Romano has an hourly rate of \$700, and Whelan has an hourly rate of \$550. (See Valitskaya Decl., Exh. 2.)

Valitskaya is a partner at

the law firm of Romano Stancroff PC. (See Valitskaya Decl., ¶ 1.) Valitskaya is admitted to practice law in California, Michigan, Colorado, and Illinois. (See *ibid.*) Valitskaya has been practicing law for 12 years, all of which have been spent handling lemon law and consumer rights cases and has worked on hundreds of consumer rights cases.. (See *id.* at ¶ 11.)

Romano is a partner at the

law firm of Romano Stancroff PC. Romano has worked on consumer rights cases for over 27 years and has handled thousands of related cases, including 110 jury trials. (See Romano Decl., ¶ 1.)

Whelan is a partner at the

law firm of Romano Stancroff PC. (See Whelan Decl., ¶ 1.) Whelan is admitted to practice law in California. (See *ibid.*) Whelan has been practicing law for over 18 years, all of which has been spent handling consumer rights and lemon law claims. (See *id.* at ¶ 6.)

Given each attorney's

history, experience, and expertise, the Court finds the requested rates reasonable. (See *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.)

II.

Reasonable

Hours

The Court will award \$14,400
in attorney's fees.

Here, Plaintiff's counsel requests
fees for 30.1 hours spent on this case. (See Valitskaya Decl., Exh. 2.) This
translates to \$16,630 in attorney's fees. (See *ibid.*)

In opposition, Defendant
contends that the Court should reduce, or outright eliminate, specific billing
entries because they are unreasonable and excessive. (See Opp'n, pp. 8:7-10:15.)
The Court considers these specific entries below:

1.

Reduce

Valitskaya's anticipated time entry to review opposition, draft reply, and
attend hearing as excessive and unreasonable. The Court finds that the 6.5
hours of anticipated time for reviewing the opposition, preparing a reply and
attending the hearing is excessive. The Court notes that drafting the reply and
supporting declarations took 2.9 hours.

a. Reduced from 6.5 hours to 3.5 hours,
amounting to a reduction of \$1,650

2.

Reduce

Valitskaya's 12/1/25 time entry to review GM's initial disclosures as excessive.
The Court finds the 2.8 hours incurred for this time to be reasonable.

a. No reduction.

3.

Strike

Whelan's 6/20/25 time entry as pre-engagement work. The Court finds the
pre-engagement work not property part of the fee award.

a. Reduced from 0.9 to 0 hours, amounting to
a reduction of \$540.

In sum, there will be

a total reduction of 3.9 hours, which equates to a reduction of \$2,190. Therefore, Plaintiff will be awarded \$14,400 in attorney's fees.

III.

Lodestar

Multiplier

Once the court determines the total lodestar amount, said amount may be adjusted through the consideration of various factors, including "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, and (4) the contingent nature of the fee award." (Ketchum v. Moses, (2001) 24 Cal.4th 1122, 1132.)

Here, Plaintiff requests a lodestar multiplier of 20% because of the contingent nature of this case. (See Motion, p. 8:4-15.) While the Court recognizes that the contingent nature of the award is a factor, based on the non-complexity of this case and the relatively quick resolution, the Court does not find a multiplier to be appropriate in this case. Therefore, the Court will not apply a lodestar multiplier.

IV.

Costs

Incurred

The Court will award \$1,676.58 in costs and expenses.

Here, Plaintiff requests \$1,676.58 in costs and expenses. (See Motion, p. 10:1.) Defendant requests the Court reduce or outright eliminate some of Plaintiff's incurred costs. More specifically, Defendant seeks to strike Plaintiff's jury fees, deposition costs, electronic fees, and appearance attorney fees. (See Opp'n, pp. 15:1-16:6.) However, the Court finds that these costs were reasonable and necessary to advance litigation. Therefore, the Court will not reduce or strike any of Plaintiff's incurred costs and expenses.

Accordingly, Plaintiff
shall be awarded \$1,676.58 in costs and expenses.

CONCLUSION

For these reasons, Plaintiff's
Motion for Attorney's Fees is GRANTED and the Court will award Plaintiff
\$16,076.58 in fees and costs.